

Khalifa bin Zayed Al Nahyan
President of the United Arab Emirates

Federal Decree-Law No. (47) of 2021
Regarding the Unified General Rules of Labor in the United
Arab Emirates

We, Khalifa bin Zayed Al Nahyan - President of the United
Arab Emirates:

- After reviewing the Constitution;
- Federal Law No. (1) of 1972 regarding the competencies of ministries and powers of ministers and its amendments;
- Federal Law No. (7) of 1999 regarding the pensions and social insurances and its amendments;
- Federal Decree-Law No. (11) of 2008 concerning human resources in the federal government and its amendments;
- Federal Decree-Law No. (33) of 2021 on the regulation of labor relations; and
- Based on what was presented by the Minister of Human Resources and Emiratization and the approval of the Cabinet;

We issued the following Decree-Law:

Article (1)

Definitions

In applying the provisions hereof, the following words and expressions shall have the meanings assigned to each of them, unless the context otherwise requires:

State: United Arab Emirates

Law: The law regulating human resources in the federal government sector or labor relations in the private sector in the state, their executive regulations and the resolutions issued for their implementation.

Establishment: Every economic, technical, industrial, commercial unit or other categories approved in the state, which aim at producing goods, marketing them or providing services, are subject to the provisions hereof and licensed by the concerned entities.

Employer: The federal government entity or any of the private sector establishments in the state, as the case may be.

Employee / Laborer: Every natural person who holds jobs in the federal government entities or from the laborers working in one of the establishments licensed in the private sector in the state.

Employment Contract: Every agreement concluded by the employer and the employee or laborer, in which the latter is committed to work for the employer and under its supervision and direction, in return for a wage the employer is obliged to pay, according to the contract forms defined by the law.

Basic wage: The wage stipulated in the employment contract, which the employee or laborer receives in return for his work under the employment contract, on a monthly, weekly, daily, hourly basis, or per piece and it shall not include any allowances, bonuses or other benefits in-kind.

Wage: Basic wage plus the allowances, cash bonuses and benefits in-kind prescribed for the employee or laborer.

Article (2)

Objectives of Decree-Law

This Decree-Law is intended for the following:

1. Setting and unifying the general rules of labor for all job occupants and laborers in the state;
2. Enhancing the effectiveness, attractiveness and sustainability of the labor market through ensuring the protection of the parties to the relation and its developments;
3. Defining the rights of all employees and laborers in the state in a balanced manner; and
4. Creating balance and integration with respect to the attractiveness and efficiency of work environment between the public and private sectors.

Article (3)

Scope of application

1. This Decree-Law shall be applied to job occupants who are subject to the provisions of the Human Resources Law in the Federal Government and its executive regulation, as well as to laborers in the private sector in the state, who are subject to the provisions of Labor Relations Regulation Law.
2. The Cabinet, based on the proposal of the Minister of Human Resources and Emiratization, may make an exception in any category subject to the provisions hereof.

Article (4)

Equality and non-discrimination

Discrimination on the basis of race, colour, sex, religion, national or social origin, or because of disability among persons, shall be prohibited, which would weaken the equal opportunities or prejudice equality in getting a job, work, continuing it and having its rights. The discrimination in the works with the same job duties shall be prohibited.

The rules and procedures that will enhance the participation of the state's citizens in the labor market shall not represent discrimination as per the provisions of this Article.

Article (5)

General controls of work

1. The relationship between the employer and the employee or laborer shall be regulated according to a fixed-term employment contract, and the law defines the conditions, controls and procedures of contracting, as well as the obligations of both parties to the labor relation.
2. It is prohibited to hire or employ persons who are less than (18) eighteen years old. The employer may appoint or employ a person who is (15) fifteen years old in accordance with the rules and cases defined by the regulating legislations in this regard.
3. The employer may appoint the employee or laborer under a probationary period not exceeding (6) six months from the commencement date of work and the law specifies the provisions related thereto.

Article (6)

Work types

1. The types of work to be contracted shall be according to the following:
 - a. **Full time:** it is to work for one employer for full daily working hours throughout the working days, whether from the workplace, remotely, or the hybrid work type,

based on the employment contract, or what is agreed upon by the employer and the employee or laborer.

- b. **Part time:** It is to work for an employer or employers for a specified number of working hours or days designated for work, whether from the workplace, remotely, or the hybrid work type, based on the employment contract, or what is agreed upon by the employer and the employee or laborer.
- c. **Temporary work:** It is the work, whose execution nature requires a specified period, or is based on a certain job and is finished by its completion.
- d. **Flexible work:** It is the work, whose performance hours or working days are changed according to the volume of work, as well as economic and operational variables of the employer. The employee or laborer may work for the employer at variable times according to the work conditions and requirements.
- e. Any other types specified by the law.

- 2. The law regulates the cases, in which it is permissible to combine between more than one work type at more than one employer.

Article (7)

Working hours

1. The maximum number of normal working hours is (8) hours in a single day or (48) hours per week. The law sets out the controls of working hours, break times, the hours at which work is prohibited, the additional hours or overtime during which it is allowed to work, their controls and the consideration obtained by the employee or laborer for the overtime.
2. The employee shall be granted a paid weekly day-off that is no less than one day and it may be increased according to the law.

Article (8)

Wage

1. The employee and laborer shall have the right to get the wage agreed upon in the employment contract in accordance with the controls and criteria specified by the law.
2. The wage shall be paid in Emirati Dirham and the wage may be paid in another currency if it is agreed upon in the employment contract.

Article (9)

Leaves

1. The leaves in the public and private sectors shall be granted for those who work as per a full-time basis, according to the following:
 - a. **Annual leave:** Its period is not less than (30) thirty days per year and (2) two days per month if the service period is more than six months and less than a year. This leave is paid.
 - b. **Maternity leave:** Its period is not less than (60) sixty days, according to the following:
 1. The first (45) forty five days with full wage; and
 2. The following (15) fifteen days with half wage.

A female employee or laborer may combine between the maternity leave with any other approved leave.

It is not permissible to dismiss a female employee or laborer or give her a notice of termination for getting a maternity leave or being absent from work for the same reason, whenever the employer is notified of the same in accordance with the law.

The female employee or laborer, after her return from maternity leave, shall be entitled to get a break for one hour to breastfeed the newborn baby, for a period of no less than (6) six months from the date of delivery. The female employee or laborer may split the one-hour break into two periods.

- c. **Parental leave:** Its period is (5) five working days as a maximum and it is granted to an employee or laborer (either the father or mother), who had a newborn baby, in order to take care of his child, whether in a continuous or intermittent manner during a period of (6) six months from the birth date of the child.
- d. **Sick leave:** Its period is not less than (90) ninety days, according to the following:
 - 1) The first (15) fifteen days with full wage;
 - 2) The following thirty (30) days with half wage; and
 - 3) The following period without wage.
- e. **Bereavement leave:** Its period is not less than (5) five days, in case of the death of the husband or wife, and (3) three days in case of the death of the mother, father, son, any, sister, grandson, grandfather or grandmother, starting from the date of death and this leave is paid.
- f. **Study leave:** Its period is not less than (10) ten working days per year, in a continuous or intermittent manner for the employee or laborer who is an affiliate or regularly studying at one of the educational institutions approved by the Ministry of Education, whether the educational institution is inside or outside the state, in order to do the exams and this leave is paid.

- g. The citizen employee or laborer shall be entitled to get a leave to perform the national and reserve service, in accordance with the legislations in force in the state.
2. **Official holidays:** Their period is the same as specified in the official holidays defined by a resolution of the Cabinet.
3. The law specifies the rules and procedures for granting the aforementioned leaves, the possibility of working during them, cases and conditions for the transfer of annual leaves, getting compensation for them, as well as the rules and procedures for granting any other leaves, whether paid or unpaid.
4. The employee or laborer working as per other types of work shall be entitled to get an annual leave calculated in proportion to the hours or days of work. Their entitlement conditions and duration shall be specified in the employment contract, as set out by the law.
5. The employee or laborer may be granted an unpaid leave as specified by the law or the employment contract.

Article (10)

Service termination

The service of the employee or laborer shall be ended by the expiry of the employment contract, or according to the reasons specified by the law.

Article (11)

End-of-service benefits

1. The end-of-service benefits shall be granted to the citizen employee or laborer, according to the legislations regulating the pensions and social insurances affairs in the state.
2. A foreign employee or laborer, who has completed a continuous year in full-time service, shall be entitled to get a benefit to be paid to him at the end of his service, calculated according to the basic wage and the minimum amount of which is defined as follows:
 - a. A wage of (21) days for each year of the first five years of service; and
 - b. A wage of (30) days for each excess year.
3. The end-of-service benefits granted to those who work according to other types of work, other than the full-time basis, shall be defined according to the law.

4. Other schemes may be adopted as alternatives to the end-of-service benefits as defined by the law.

Article (12)

General Provisions

1. Without prejudice to the provisions contained herein, the rules stipulated herein shall represent the minimum rights for laborers in the private sector.
2. The provisions hereof shall not prejudice any of the rights prescribed under any other legislation, agreement, approval, system, program or employment contract, which would grant the employee or laborer rights more beneficial than the rights established under the provisions hereof.
3. The calculation of periods and times stipulated herein shall be based on the Gregorian calendar and the calendar year in applying the provisions hereof includes (365) days and the month contains (30) days.

Article (13)

Publication and enforcement of the Decree-Law

This Decree-Law shall be published in the Official Gazette and shall be enforced as of 02 February 2022.

**The original document was signed by
His Highness Sheikh Khalifa bin Zayed Al Nahyan
President of the United Arab Emirates**

Issued by us at the Presidency Palace in Abu Dhabi:

On: 13 Safar 1443 AH

Corresponding to: 20 September 2021 AD